

whether the \$2,325,000 is a reasonable amount.

"A determination as to the good faith of a settlement, within the meaning of section 877.6, necessarily requires the trial court to examine and weigh a number of relevant factors, *one of the most important of which is the settling party's proportionate liability.*" (*Mattco Forge, Inc. v. Arthur Young & Co.* (1995) 38 Cal.App.4th 1337, 1350 quoting *Toyota Motor Sales U.S.A., Inc. v. Superior Court* (1990) 220 Cal.App.3d 864, 871, italics in original.) "If *"there is no substantial evidence to support a critical assumption as to the nature and extent of a settling defendant's liability,* then a determination of good faith based upon such assumption is an abuse of discretion." (*Ibid.* italics in original.)

The Court acknowledges that \$2,325,000 is a substantial amount of money. However, without any evidence and discussion indicating what Plaintiff's potential recover is and evidence supporting Salas' counsel's opinion that he has little to no liability for the subject accident, the Court cannot make a reasoned determination as to the good faith nature of the settlement.

Conclusion

Defendant/Cross-Complainant Richard Salas' motion for determination of good faith settlement is **denied without prejudice**. Mr. Salas is free to file a new motion with additional evidence in support if he so desires.

6. 9:00 AM CASE NUMBER: C24-00162
CASE NAME: MARIA MALDONADO VS. GJACE RIDDELL
*HEARING ON MOTION IN RE: FOR LEAVE FOR ORDER REQUIRING PLAINTIFF MARIA MALDONADA TO SUBMIT TO MULTIPLE INDEPENDENT MEDICAL EXAMS
FILED BY: RIDDELL, GJACE MORG
TENTATIVE RULING:

Vacated.

7. 9:00 AM CASE NUMBER: C24-00841
CASE NAME: BRIAN BANIQUED VS. JUAN MANCHENO
*HEARING ON MOTION IN RE: EXPUNGE LIS PENDENS & FOR AWARD OF ATTORNEY'S FEES
FILED BY: MANCHENO, JUAN C.
TENTATIVE RULING:

Before the Court is a motion to expunge *lis pendens* filed by Defendant Juan C. Mancheno ("Defendant" or "Mancheno"). Plaintiff Brian Baniqued and Baniqued Realty Inc. dba Banquied Commercial Real Estate ("Plaintiffs" or "Banquied") recorded the *lis pendens* against 3114 Hermitage Road, Pebble Beach, California 93953.